

Appeals and complaints

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Three electors, elected for three years, separate from council.
- Any member can file a complaint in writing.
- Decisions in writing, with reasons, on a deadline.
- Council can't overturn a decision. Only a court can.
- If the appeal body keeps missing deadlines, members can replace it.

Why this draft is here

Every rule in this set needs someone other than council to check it. The appeal body is that someone, elected by members and paid by a rate members set.

1. Purpose

- 1.1 This code sets up the appeal body. Council does not hear appeals of its own decisions.

2. Who sits

- 2.1 The appeal body is three electors elected under the constitution, Part 7, for three years. They must not be on council, employees, contractors, or immediate family of anyone on council.
- 2.2 At least one member of the appeal body should live off reserve, and at least one should live on reserve, if candidates are available.
- 2.3 A member of the appeal body who runs for council must resign from the appeal body within 2 days of being nominated. If they don't, their seat is empty on day 3.
- 2.4 Two members make a quorum. A member who is immediate family of a party, or who took part in the decision being appealed, must not sit on that file. If two members can't sit, any 10 electors may name a qualified elector in writing for that file only, within 14 days.
- 2.5 The First Nation pays each member of the appeal body a posted stipend set by elector vote, not by council. A council resolution that cuts the stipend during a term is void.
- 2.6 The appeal body may hire independent legal advice from its own budget line, which council may not cut during a term.

3. Complaints

- 3.1 A member may complain in writing within 60 days of learning of a decision, and no later than 1 year after it. The complaint states the date, the decision, the section, and what the member is asking for.

- 3.2 The appeal body gives the decision maker 14 days to respond in writing, then decides within 30 days after that, whether or not a response was filed.
- 3.3 The appeal body may dismiss a complaint that names no section and no fact, within 15 days, with reasons.
- 3.4 A decision is in writing, cites the section, and states the order. Orders may include: declaring a resolution void, ordering repayment by a set date, barring a person from a type of decision for a set time, pausing or restoring a benefit, or removing a person from office or employment where another code in this set allows removal.
- 3.5 The appeal body posts each decision within 3 days. It does not post anyone's health information or the text of an accusation it found false.
- 3.6 A decision stands unless a court pauses or overturns it. Council must not overturn it. A resolution that tries to is void, and each person who voted for it may not move a money resolution for 90 days.

4. The appeal body's own deadlines

- 4.1 If the appeal body misses a deadline in this set, the records officer posts that the next day.
- 4.2 If it misses three deadlines in one year, any 10 electors may call a vote, on 21 days' notice, to replace it. The old body stays until the new one is elected.
- 4.3 The appeal body posts a yearly report within 60 days after year end: complaints received, decided, and outstanding, and deadlines met and missed.

5. Changing this code

- 5.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 5.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 5.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 5.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

6. Review and coming into force

- 6.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 6.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 6.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 6.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.

6.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.